

BEFORE THE FEDERAL MARITIME COMMISSION

Docket No. 24-19

PELTON INTERACTIVE, INC.

v.

FLEXPORT INTERNATIONAL LLC

CONSENT MOTION FOR ENLARGEMENT OF TIME

Pursuant to 46 CFR 502.69 and 501.102, Respondent, Flexport International LLC (“Respondent”), by and through their undersigned counsel, files this Consent Motion for Extension to extend the time within which Respondent must file its responsive pleadings (pursuant to 46 C.F.R. §§ 502.62(b), 502.69, and 502.71) to the Complaint until June 17, 2024, and in support state as follows:

1. Counsel for respondent has had numerous scheduling conflicts the past two weeks including the Memorial Day holiday.
2. In addition, lead counsel was traveling outside the country for the last two weeks.
3. Since receiving the Complaint, counsel for Respondent has engaged in good faith discussions regarding this matter with counsel for Complainant, including participation in the FMC’s mediation program.
4. As such, good cause exists for the relief sought herein.
5. The motion is submitted in utmost good faith and will not adversely impact this proceeding.
6. Pursuant to 46 C.F.R. §502.71, counsel for Respondent has conferred with counsel for Complainant regarding this request, and has been authorized to represent that counsel for

Complainant consents to the requested extension. Specifically, attorney Robert Borak discussed this matter with counsel for complainant on May 28, 2024, with respect to the relief sought herein and confirmed via email later that day.

Accordingly, Respondent respectfully requests that it be granted until June 17, 2024 to file its response to the complaint.

Dated at Miami, Florida this 28th day of May, 2024.

Respectfully submitted,

SPECTOR RUBIN, P.A.

Attorneys for the Respondent

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Certificate of Service

I hereby certify that I have this day served the foregoing document upon all parties of record in this proceeding by electronic mail a copy to each such person in sufficient time to reach such person on the date the document is due to be filed with the Commission.

Dated at Miami, Florida this 28th day of May, 2024.

Respectfully submitted,

SPECTOR RUBIN, P.A.

Attorney for the Respondent

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